

SENATE BILL 706

By Massey

AN ACT to amend Tennessee Code Annotated, Title 71,
relative to TennCare.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. This act is known and may be cited as the "TennCare Network Reporting Reform Act."

SECTION 2. Tennessee Code Annotated, Title 71, Chapter 5, Part 1, is amended by adding the following as a new section:

(a) As used in this section:

(1) "1115(c) and 1915(c) waiver programs":

(A) Means a program administered by the bureau of TennCare pursuant to a federal 1115(c) demonstration waiver or a 1915(c) home- and community-based services (HCBS) waiver; and

(B) Includes the CHOICES and Employment and Community First CHOICES programs; the Katie Beckett program; the self-determination waiver program; the HCBS program; and the comprehensive aggregate cap home and community based services program;

(2) "Appointment wait time" means the number of days between the setting of a provider appointment and the date of the appointment;

(3) "Data" means aggregated and disaggregated data;

(4) "Service utilization percentage" means the number of benefit units provided to an individual with a disability divided by the number of benefit units

allocated to such individual as identified in the individual's person-centered plan or waiver cap; and

(5) "Time between approval and receipt of service" means the number of days between the approval of new services in a person-centered plan and the date the delivery of such service begins.

(b)

(1) Beginning no later than January 15, 2026, and no later than each January 15 of each subsequent year, the director of TennCare, or the director's designee, shall gather, collate, and make available to the public on the TennCare website:

(A) Data relevant to the network adequacy of TennCare's 1115(c) and 1915(c) waiver programs;

(B) Federally required network adequacy reporting metrics; and

(C) Data on service utilization percentage, appointment wait time, and time between approval and receipt of service.

(2) Data and metrics required to be published pursuant to subdivision (b)(1) must:

(A) Be delineated by service or benefit, waiver group enrollment type, county, and demographics;

(B) Use data from the previous calendar year;

(C) Be located on a publicly accessible page of the TennCare website; and

(D) Be published and available for download on such web page in a comma-separated values file format.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.